

SENATE No. 1474**The Commonwealth of Massachusetts**

PRESENTED BY:

Bruce E. Tarr

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act allowing moveable tiny houses as permanent residential dwellings and accessory dwelling units.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	
<i>David F. DeCoste</i>	<i>5th Plymouth</i>	<i>1/23/2025</i>
<i>Colleen M. Garry</i>	<i>36th Middlesex</i>	<i>1/31/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>2/3/2025</i>
<i>Joseph D. McKenna</i>	<i>18th Worcester</i>	<i>2/7/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>2/20/2025</i>
<i>Jacob R. Oliveira</i>	<i>Hampden, Hampshire and Worcester</i>	<i>2/20/2025</i>
<i>Paul W. Mark</i>	<i>Berkshire, Hampden, Franklin and Hampshire</i>	<i>2/27/2025</i>
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>2/27/2025</i>
<i>Lydia Edwards</i>	<i>Third Suffolk</i>	<i>4/16/2025</i>

SENATE No. 1474

By Mr. Tarr, a petition (accompanied by bill, Senate, No. 1474) of Bruce E. Tarr, David F. DeCoste, Colleen M. Garry, Joanne M. Comerford and other members of the General Court for legislation to allow moveable tiny houses as permanent residential dwellings and accessory dwelling units. Municipalities and Regional Government.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act allowing moveable tiny houses as permanent residential dwellings and accessory dwelling units.

Whereas, The deferred operation of this act would tend to defeat its purpose, which is to declare that movable tiny homes (MTH) are structures that are important, effective, and deemed crucial in addressing the affordable housing crisis in the Commonwealth. Given this crisis, exasperated by the pandemic years, notwithstanding any general or special law to the contrary, municipalities shall be required to give special consideration to movable tiny houses whether or not they meet the Chapter 40B 10% threshold for affordable housing, as a fast-track solution to this most significant problem for the Commonwealth's workforce and the rising demographic of 1-2 person families. This housing product is built to the 10th edition of MA. Building Code, thus, is a safe, habitable dwelling that should no longer be regulated like RVs. Many of our workers have been evicted overnight from their movable tiny homes due to town officials' misunderstanding that these dwellings are built like seasonal RVs when they are built like any other stick-built house in compliance with the building code. The foundation is an integrated chassis floor system that when anchored with augers and skirted, is as stable as a fixed permanent foundation., therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public convenience.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1A of chapter 40A of the General Laws, as amended by chapter 358
2 of the acts of 2020, is hereby further amended by inserting after the definition of “MBTA
3 community” the following definition:-

4 “Movable tiny house”, is a transportable dwelling unit built on a frame or chassis with
5 not more than 400 square feet, excluding lofts, projections from bay windows, open decks,
6 porches, or exterior utility and storage compartments, intended for residential use on an
7 individual house lot where single-family dwellings are allowed or as an accessory dwelling unit.

8 A “movable tiny house” shall be permanently affixed to a chassis approved by the
9 Massachusetts Department of Transportation capable of carrying the total weight of the structure
10 and the exterior width shall not exceed any dimension prohibited by the Massachusetts
11 Department of Transportation for movement on a public way or highway; provided further, that a
12 “movable tiny house” shall be built in conformance with the regulations and standards of the
13 state building code but shall not be required to have insulation in walls, floors and ceiling
14 exceeding R13, R19 and R25 respectively.

15 SECTION 2. Section 3 of said chapter 40A, as is hereby amended by adding the
16 following 4 paragraphs:-

17 The Massachusetts Department of Transportation, the Registry of Motor Vehicles, and
18 the secretary of the commonwealth shall establish a new category for movable tiny houses. The
19 Registry of Motor Vehicles shall establish a process to apply for, issue, and cancel certificates of
20 title for movable tiny houses that meet all additional safety and equipment requirements
21 established by the Registry of Motor Vehicles; provided, however, that the registration fee for

said certificates of titles for movable tiny houses and manufactured movable tiny houses shall be \$100.

A movable tiny house may be placed on a lot as defined in section 1A of chapter 40A of the General Laws and lived in for not less than 180 days before an on-site inspection; provided, however, that after 180 days, a movable tiny house shall be required to have an established address, energy and water source and wastewater system; provided further, that after 180 days, the authority having jurisdiction of said lot shall provide for the inspection of the moveable tiny house by either the local authority having jurisdiction or a certified member of a third party inspection agency and if the moveable tiny house meets the standards of the inspection a certificate of occupancy shall be issued.

Notwithstanding any general or special law to the contrary, a city or town may establish less restrictive rules and regulations than are permitted by this section; provided, however, that a city or town shall not establish design criteria having the effect of excluding movable tiny houses. A city or town may incentivize hosted parking of movable tiny houses with tax abatements or other tax incentives.